

Access to justice for Bangladeshi migrant workers:

Opportunities and challenges

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Access to justice for Bangladeshi migrant workers: Opportunities and challenges

Shakirul Islam | March 2021

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Photo: © OKUP

Executive summary

Background and objectives

Economic hardship is the main reason for overseas migration for both men and women. However, the research exposed gender-based violence resulting in divorce and separation as vital reasons why almost one fifth of migrant workers from Bangladesh are women. Women migrants not only contribute to their families through investment in food security, health and education, the remittances they send make a significant contribution to the overall economic development of the country.

The Government of Bangladesh has adopted laws and policies for the protection of the rights of migrant workers with a special emphasis on female migration. The Overseas Employment and Migrants Act (OEMA) 2013 ensures migrant workers' rights to seek criminal prosecution for any offence under the Act. The Act allows any aggrieved person to file a complaint against any fraud, extortion or a breach of contract against any person including a recruitment agent.

The Government has established an 'arbitration cell' under the Bureau of Manpower and Employment (BMET) to provide a structural Alternative Dispute Resolution (ADR) system without forsaking the right to file a civil suit. However, without improvements in the institutional mechanism and implementation of this, accessing justice and reaching fair solutions for migrant workers, particularly women, remains a challenge. The lack of proper implementation of the law and the policy continue to make the recruitment system in Bangladesh unfair and unsafe. Unethical recruitment practices make migrant workers, especially women, more vulnerable in the migration cycle.

This research aims to highlight the practical challenges faced by migrant workers, especially women, in seeking justice through BMET arbitration and the courts. These challenges are highlighted to assist key stakeholders and duty bearers to understand how the justice mechanisms for migrant workers can be improved within the purview of the existing laws and policies. The specific objectives of the research are:

- To understand the **causes and consequences of rights violations** of the women migrant workers, most of whom have migrated for domestic work in the Middle East
- To expose **opportunities and challenges in existing justice mechanisms** in the 'arbitration' and in the court
- To present **recommendations to improve the existing justice mechanisms** for the migrant workers in the country

Scope, methodology and limitations

This action research reviewed the experiences of the survivor women migrant workers who went through mental and physical abuse, exploitation and violation of rights during recruitment and employment in the destination countries and the consequences they went through upon return. The report critically analyses the ability of women migrant workers in filing cases/complaints in the existing justice mechanisms such as the 'court' or the BMET 'arbitration' and the challenges they faced in accessing fair and equitable justice.

The research is primarily based on in-depth case documentation of 262 returnee women migrant workers who returned home as survivors of exploitation and abuse during recruitment and employment in the Middle Eastern countries. Each case was identified by peer migrant networks mainly from four districts – Faridpur, Narsingdi, Munshigonj and Narayangonj and documented by gathering testimonies together with available documents and evidence. The research also follows and systematically documents 123 arbitration cases and six court cases filed by the women migrant workers in Narsingdi, Faridpur and Dhaka districts of Bangladesh.



"I returned with critical mental health issues. OKUP helped me to get treatment but I did not get justice for what made my life hell." Photo: © OKUP

A critical review of the Overseas Employment and Migrants Act 2013, Expatriate Welfare and Overseas Employment Policy 2016, Overseas Employment and Migration Management Rules 2017, the Prevention of Human Trafficking and Suppression Act 2012, international instruments particularly Global Compact on Migration as well as relevant research and publications was also completed to prepare the report.

The research focused on understanding the challenges that women migrant workers face during recruitment and employment. Therefore, the research explicitly covered women migrants who approached OKUP for legal assistance.

The research only focuses on the women who received legal assistance from OKUP in 2019, however it highlights the gravity of the violations and the consequences for the women migrant workers. The data might never reflect the whole picture of the women migrant workers. The research only covered domestic women migrant workers and not women who work in other sectors like the apparel industry. This research focuses on the existing justice mechanism for migrant workers in Bangladesh only and not the justice system available in destination countries.

Key findings

This research highlights how the nexus of agents and sub-agents entice the women to migrate by providing false promises and information and take unlawful measures to send women abroad in the name of better opportunities for employment. They prey on the vulnerable socio-economic condition of the women to trap them in the migration cycle. The research found 7 per cent of the 262 women surveyed were under the age of 24 (the legal age required to migrate) while 3 per cent were children below the age of 18.

The research also found 24 per cent of the women were provided with an 'emigration clearance card' without their participation in the mandatory pre-departure training organised by the Government-run technical training centers, while 17 per cent were sent with forged medically fit certificates. Nearly 88 per cent of the women were not provided with a written job contract in time, or with appropriate translation and orientation. The women migrant workers are supposed to be recruited with 'zero' fees, but 65 per cent of the women paid between BDT 5,000 and BDT 150,000 (US$ 60 – 1,785) to migrate.

This research also found around 58 per cent of the women migrant workers were forced to return home within the first year of their migration though the duration of the initial contract was two years. The majority of the returnee women migrant workers claimed to have faced horrific struggles including being overworked, having long working hours, being deprived of food, facing physical and psychological torture, and sexual abuse which resulted in them being forced to return. 27 per cent of the returnee women migrant workers claimed illness caused by physical and psychological torture and abuse were among the key reasons for their premature return.

Key strengths and challenges in access to justice

Strengths

- The Government of Bangladesh has enacted the OEMA 2013 as a special law to regulate recruitment in the overseas employment process and ensure migrant workers' access to justice. In addition, the OEMA 2013 supplements the Prevention of Human Trafficking and Suppression Act 2012 (PSHTA).
- Both the OEMA 2013 and PSHTA 2012 are built on the principle of victim-centric restorative justice.
- The OEMA 2013 aims to ensure migrant workers' physical access to the justice delivery system both in the formal court (Art. 28) and in the quasi-judicial system known as the 'arbitration' system (Art. 41) by filing cases/complaints against any person including recruiting agents for any offence under the Act (Art 31, 32, 33, 34, 35).
- The OEMA 2013 ensures imprisonment and monetary penalties for the recruiting agent or any person convicted of committing the offence.
- The OEMA 2013 makes the recruiting agent and employer severally and jointly liable in the event of a breach in the condition(s) of the employment contract which stipulates wages, accommodation facilities, duration of employment, compensation amount in the event of death or injury, cost of migration to and return etc. (Art. 22)
- The OEMA 2013 allows the arbitrator to conduct an investigation of any complaints of fraud, extortion or a breach of employment contract filed by migrant workers and resolves the complaints directly or through 'arbitration' (salish). This is an inquisitorial justice system where the arbitrator can directly investigate and declare 'arbitral award'. Here the arbitration has the opportunity to deploy his/her inquisitorial minds as s/he can declare arbitral award depending upon his/her investigation findings.

Challenges

- Migrant workers regularly become the victim of fraud and extortion or face a breach of their contract. The OEMA 2013 has defined these acts as a punishable offence. However, all these offences fall under the article of 31 (a), (b), (c), (d) of the OEMA 2013 which are bailable, non-cognisable and compoundable. The provision of offering 'bail' to the offender is a big weakness of the Act which puts the migrant workers and their families under physical threat from the offender.
- According to the testimonies of the 262 returnee women migrant workers, 95 per cent of all recruitment for overseas jobs takes place with the assistance of field-level sub-agents who are unofficially engaged with the licensed recruiting agents as a chain in layers. The OEMA 2013 does not recognise the presence of the sub-agent in the recruitment process.
- The OEMA 2013 framed a trial period of 120 days with maximum extension of 60 days from the date of framing the charge against the offender. The Act has not fixed any period for investigation, which results in long processes that weakens the morale of the migrants to continue with the process.
- The absence of a dedicated arbitral tribunal as well as a pool of expert 'arbitrators' causes a huge challenge to ensure transparency and accountability in accessing justice through arbitration.
- The OEMA 2013 has no provision for the protection of victims or witnesses. Migrant workers face threats and risks not only in the court but also during arbitration. They face further exploitation and humiliation in seeking justice which is a clear violation.
- In 2020 the Government established a Special Tribunal for Human Trafficking Cases at divisional level but the tribunal needs to be established at district level for easy access by the victims.
- The OEMA 2013 specified that the cases for the violation of the Act will be filed in the Chief Judicial Magistrate's Court and/or Chief Metropolitan Magistrate's Court. However, these courts are overburdened with numerous cases. Around 3.5 million cases remain pending in the lower court annually.[1] Therefore, justice gets delayed.

1. https://www.thedailystar.net/country/news/more-3582-lakh-cases-now-pending-law-minister-bangladesh-1758820

- Bangladesh missions and labour wings are supposed to provide all support and assistance including legal aid to the migrant workers abroad. There is no official data available about the number of complaints received by the labour wings, how many of them provided legal aid and how many migrant workers receive remedies and compensation annually.

Recommendations

The Overseas Employment and Migrants' Act 2013 should:

- Recognise the role of sub-agents and the need for the sub-agents to be registered and brought under an accountable and regulated system;
- Include a new article relating to the protection of victim migrant workers and their families/ witnesses;
- Treat offences under Article 31 (a, b, c, d) as cognisable, non-compoundable, and non-bailable;
- Include migrant workers' cases in the Special Tribunal under the PSHTA 2012.

The Ministry of Expatriate Welfare and Overseas Employment should:

- Adopt separate comprehensive rules for 'Arbitration' as stipulated in the OEMA 2013 (sub-section 4 of Art. 41);
- Ensure greater transparency through establishing a 'Separate Arbitral Tribunal' as a separate wing, with a separate office and the necessary human resources including a pool of qualified 'arbitrators';
- Develop a comprehensive plan for improving the capacity of arbitrators and judges to deliver effective arbitrations. Training for judges should be arranged through the judicial administration training Institute;
- Hold each party in the arbitration process accountable for their duties.



"I have rented some farmland with the money I received through BMET arbitration. This has helped me to overcome my negative experiences in the migration cycle." *Photo: © OKUP*

The Government should take the following actions to improve justice for migrant workers in the destination countries:

- Increase human and financial resourcing for Labour Welfare Wings;
- Develop a pool of lawyers within Labour Welfare Wings, with expertise in labour/migrants' law in destination countries, to provide legal aid to distressed migrant workers;
- Establish a Power of Attorney mechanism whereby migrant workers can be represented in destination countries when facing deportation and forced return.

1 Introduction

1.1 Background

The Expatriate Welfare and Overseas Employment Policy 2016 of Bangladesh espoused the protection of migrant workers and families left behind as one of its key objectives. The OEMA 2013 ensures migrant workers' right to seek a criminal prosecution for any offence under the Act. The Act allows any aggrieved person to file a complaint against any fraud, extortion or a breach of contract against any person including a recruitment agent. The Government has established an 'arbitration cell' under the Bureau of Manpower and Employment (BMET) for accessing the structural Alternative Dispute Resolution (ADR) system without forsaking the right to file a criminal case.

The contribution to the economy made by Bangladeshi migrant workers is well recognised nationally and internationally. The low flow of remittances in any quarter of the year creates a great concern for the key stakeholders. Despite their considerable contribution to the overall development of the country, migrant workers are not well protected. Unsuccessful migration causes social and economic damage. The key reasons why migration for some women is unsuccessful include having to face sexual and mental abuse, exploitation, manipulation, and violation of rights during recruitment and employment. This has a critical impact on the individual workers and their families and has a longterm negative impact on the country's socio-economic development. Despite this, the issues of violations of rights and the importance of accessing fair and equitable justice are rarely considered in the policy discourse.

A database of women migrant workers who return home empty handed with broken dreams, with critical psychological trauma or physical illness due to torture by the employers is yet to be put in place by the Bangladesh Government. Neither are there any improved institutional mechanisms for migrant workers to file grievances with authorities either in the court or through 'arbitration'. The migrant workers, including women, rarely have knowledge about their legal rights under the provisions of the OEMA 2013. They are often intimated by power holders in the migration cycle. OKUP have experience of women migrant workers trembling when disclosing the identity of the agent or taking legal actions against them. Social stigma and shame felt in raising these cases, harassment and threats after filing legal cases, and victim blaming are all causes that demotivate and refrain women migrant workers from filing criminal cases with the authorities. Keeping this harsh reality in mind, many migrant workers believe that impunity is common practice and they would not get the justice they deserve.

Despite the good provisions within the relevant legislation, the lack of implementation and the lack of an improved institutional mechanism, that allows migrant workers access to justice, remain critical challenges in the protection of Bangladeshi migrant workers.

This report is prepared following a critical analysis of the cases of the returnee migrant workers especially women who filed complaints in the BMET 'arbitration' and filed cases in the court. The overall objective of the report is to bring forth the practical challenges, in both BMET arbitration and the court cases, faced by the migrant workers, especially women, for the purpose of assisting key stake-holders and the duty bearers for the improvement of justice mechanisms for migrant workers within the purview of the existing laws and policies.

This is to note that this report is the second annual report published by OKUP on "Access to justice for Bangladeshi migrant workers: Opportunities and challenges". The first report, published in 2019, highlighted the importance of the improvement of the arbitration process, creating wider awareness of the Act among the migrant workers, judges and lawyers, and extending the Government's legal aid services for the migrant workers.

1.2 Objectives

With the aim of improving the institutional mechanism for migrant workers' access to appropriate justice and remedies, the report concentrates on three immediate objectives:

- To understand the **causes and consequences of the violation of rights** of the women migrant workers, most of whom migrate for domestic work in the Middle Eastern countries

- To expose **opportunities and challenges in existing justice mechanisms** in the 'arbitration' and in the court
- To present **recommendations to improve the existing justice mechanisms** for the migrant workers in the country

1.3 Report scope

One of the key principles of the Bangladesh Expatriate Welfare and Overseas Employment Policy 2016 is to create equal opportunity for both men and women. The policy emphasises human dignity of migrant workers, as well as safe and decent work for women migrant workers. The laws and policies of the labour in destination countries also ensure decent work, safety and protection of migrant workers during the period of employment. International instruments such as the Global Compact on Migration emphasise fair and ethical practices in recruitment of migrant workers to ensure 'safe migration' – which refers to the entire process of migration from departure to return, accessible services at every step of the work journey, in pre-departure procedures, at the airport, in transit and at the destination.[2]

This research highlights the experiences of the survivor women migrant workers who went through sexual and psychological abuse, exploitation and violation of rights during recruitment and employment in the destination countries and the consequences they faced upon return. The report critically analyses the ability of women migrant workers in filing cases/complaints in the existing justice mechanism such as the 'court' and/or the BMET 'arbitration', the challenges they faced and the opportunities available within the purview of the laws in getting fair and equitable justice.

1.4 Methodology

This is an action research. The research is primarily based on in-depth case documentation of 262 returnee women migrant workers who returned home as survivors of exploitation and abuse during recruitment and employment in the Middle Eastern countries. The cases were identified by a peer network of returnee migrant workers as per a set criterion. The research follows a systematic documentation of cases provided through testimonies of survivor women migrant workers. The 262 returnee women migrant worker's cases were documented from four districts – Faridpur, Narsingdi, Munshigonj and Narayangonj (OKUP project working areas under the EU EIDHR project). The documentation of cases was conducted by following a semi-structured questionnaire. The quantitative data of each case was input into a database on Microsoft Excel. Narrative case studies were also prepared and preserved.

Once documented, each case was vetted by a legal expert and assisted for filing as a case/ complaint in the court or the arbitration. Of those, 123 women filed complaints to the BMET arbitration while six women filed cases in the court. The research follows the procedures and progress of the cases which were filed in the BMET 'arbitration' and in the court and documented regularly in a systematic method.

The research also reviews existing legal frameworks for migrant workers including the Overseas Employment and Migrants Act, Expatriate Welfare and Overseas Employment Policy 2016, Overseas Employment and Migration Management Rules 2017 and international instruments i.e. Global Compact on Migration, relevant researches and publications.

1.5 Limitations

The research only includes returnee women migrant workers who received assistance and support from the project implemented by OKUP and does not therefore include women who have not been able to access support or services on return.

The research is focused on women migrant workers who worked abroad as domestic workers. The women migrant workers who worked in other sectors, for example garments, as well as male migrant workers who are also exposed to abuse, exploitation and violation of rights during recruitment and employment, are strategically excluded in this research.

The research has followed the justice mechanism system for returnee migrant workers in Bangladesh only. It did not have the scope or resources to cover the justice system and the remedies in the destination countries.

2. OKUP 2019 (Shakirul Islam). "A Feminist Participatory Action Research: Safe and Fair Migration of Bangladeshi women migrant workers"

2 Overview on women migration in Bangladesh

Flow of women migrants

The participation of women workers in overseas labour migration from Bangladesh started in the late 1970s. The flow of female migration declined rapidly in the 1980s and 1990s due largely to restrictions and bans placed by the Government of Bangladesh in an effort to protect women from the hardships and vulnerabilities brought about by migration. The state-run Bureau of Manpower Employment and Training (BMET) maintains a database of women migrant workers migrating through official channels with BMET clearance since 1991. The number of undocumented women migrant workers abroad during this period of restrictions and bans from 1981 to 2004 are missing from this database.

The analysis of BMET data[3] shows that between 1991 and 2003, an average of 1,479 women migrated abroad annually for employment. Since the lifting of the ban and all forms of restrictions in 2003, the flow of women migrant workers gradually increased particularly when the age limit of women domestic workers was reduced from 35 to 25 years in 2007. During the first decade (2004-2013) after the lifting of all forms of restrictions and bans, an average of 25,702 women left the country each year, through official channels, for employment abroad. Yearly totals ranged from 11,259 women in 2004 to 56,400 women in 2013.

A number of Government initiatives, including the latest MoU signed with Saudi Arabia in 2015 on the recruitment of women domestic workers, created further scope for increasing the number of women domestic workers. During the six years between 2014 and 2019, the numbers of women migrating increased by around 70 per cent compared to the previous 10 years.

Despite steadily increasing, the number of women migrations is less than that for men. The average increase of women migration compared to men is 15 per cent over the last five years (2015 – 2019) which was 10 per cent in the previous five years (2010 – 2014).

Major destination countries of women migrant workers

The women migrant workers from Bangladesh are sent to around 17 countries in the world. The majority (around 97 per cent) of them are employed in the Middle Eastern countries – mainly in Saudi Arabia (40 per cent), followed by Jordan (18 per cent), the UAE (15 per cent), Lebanon (12 per cent) and Oman (10 per cent). The other Middle East countries are Qatar (4 per cent), Kuwait (1 per cent) and Bahrain (0.48 per cent). Other than the Middle East countries, Mauritius is a popular destination country for Bangladeshi workers.

Diagram 1. Flow of women migration from Bangladesh 1991 to 2019

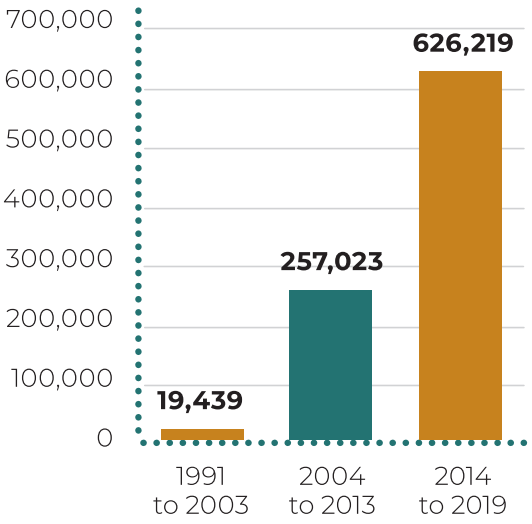


Table 1. Proportion of women migrant workers and yearly rate of increase

	Number of total migrations	Number of women migrations	% of women migrants	Yearly % increase of women migrants
2015	555,881	103,718	18.65	36.46
2016	757,731	118,088	15.58	13.85
2017	1,008,525	121,925	12.08	3.25
2018	734,181	101,695	13.85	-16.59
2019	700,159	104,786	14.97	3.04

Major occupations of women migrant workers

The key occupation of the Bangladeshi women migrant workers is domestic work. Almost all Middle Eastern countries recruit domestic workers from Bangladesh. Apart from domestic workers, Jordan recruits women garment workers from Bangladesh. Other than Jordan, Bangladeshi garment workers are recruited in the apparel sector in Mauritius.

Governance of women migration

The labour migration used to be regulated by the Emigration Ordinance 1982 and the Emigration Rules 2002 until the Government adopted the Overseas Employment and Migrants Act in 2013. However, women's migration was regulated by different Orders by the Government of Bangladesh. The women migration was restricted or banned from 1981 to 2003 in various forms. In 2003, the Government lifted all forms of bans and restrictions and reopened migration for women domestic workers aged 35 and over to Saudi Arabia for domestic work.

The Government had set different provisions for the women workers themselves (i.e. 'No Objection Certificate' from legal guardian), for the employers, the recruiting agents as well as the Governments of both Bangladesh and Saudi Arabia.[4] However, these provisions did not stop the recruiting agents lying about the age of the women in their travel documents and forging the 'No objection certificate' from the guardians, leaving many women migrant workers in trapped situations, or the victims of labour trafficking.

In 2007 the Government of Bangladesh, through another 'Order', reduced the age limit from 35 to 25 years and opened other Middle Eastern countries for women domestic workers. In this 'Order', the Government brought several provisions to make systematic recruitment of women domestic workers i.e. issuance of a work permit, attestation of visas by the concerned Bangladesh Embassies in the destination countries , and mandatory 21-day pre-departure training for outgoing domestic workers. The 'Order' held the recruiting agents accountable for maintaining a database of women migrants with the aim that the recruiting agents would monitor women migrant workers in the destination country. The database would also be used by the embassies and missions abroad.

Later in 2012, the Government adopted the "**Human Trafficking Prevention and Suppression Act in 2012**" with the provision that the Act would cover those engaged in migration of workers through false information. The Act also mentioned that it would supplement with any legislation relating to labour migration.

The Government of Bangladesh then adopted the "**Overseas Employment and Migrants Act**" in 2013. The Act provided recruitment responsibilities to the authorised recruiting agents and asked them to open branch offices to reach out to potential migrant workers at the grassroots level. The Act disallows any sub-agent, broker or middleman to act in the supply chain of recruitment, makes the licensed recruiting agents accountable and liable and safeguards the migrant workers' entitlements – salaries, benefits, compensations etc. – through a written job contract.

The OEMA 2013 allows migrant workers to file cases in the court and seek criminal prosecution for any offence under the Act. The Act 2013 also allows the migrant workers to file complaints against any person including a recruiting agent for any fraudulent activity such as charging Government unapproved amounts for migration costs or a breach of contract to the concerned Government authority (here it is BMET). The Act defined the offences and ensured penalties for each offence.

The Government also adopted '**Migration Management Rules**' in 2017 to regulate recruitment processes and monitoring activities of the recruiting agent. The Rules briefly illustrated the 'arbitration' process run by the BMET. In the following year, the Government adopted '**Wage Earners' Welfare Act**' to ensure assistance and support to the vulnerable migrant workers. Prior to that, the Government adopted "**Expatriate Welfare and Overseas Employment Policy**" in 2016 with the aim to ensure a rights-based protection system for migrant workers.

3. http://www.old.bmet.gov.bd/BMET/stattisticalDataAction or http://www.old.bmet.gov.bd/BMET/viewStatReport.action?reportnumber=22

4. No. MoEWOE/See-5/Service-12/2002(part-1/Dated 09-12-2003: conditions for recruitment of Bangladeshi females as Household Workers/ House Assistance in the Kingdom of Saudi Arabia

3 Key findings

3.1 Personal profiles of the research participants

Age

According to the Government rules of 2007[5], women who are aged between 25 and 38 are legally permissible to migrate abroad for domestic work. The quantitative data of 262 returnee women migrant workers (participants of this research) show that 77 per cent of the women were between 25 and 38 during the time of migration. 10 per cent of them were more than 38 years old and 10 per cent of them were between the ages of 18 and 24. Data shows that 2 per cent were girls below the age of 18 years when they migrated abroad as domestic workers.

Educational status

Out of 262 returnee women migrant workers, 42 per cent never enrolled in formal education – they only can write their names, while 39 per cent completed primary education (classes 1 – 5) and 15 per cent completed Junior School Certificate (class 8). The remaining 4 per cent of the women did not complete Secondary School Certificate but completed school up to class 10.

Marital status

72 per cent of the 262 returnee women were married before they migrated abroad for domestic work while 21 per cent were divorced or separated and only 7 per cent were single.

3.2 Reasons for migration

Reasons for migration can be categorised by economic factors, social factors and environmental factors, all of which push women towards overseas employment. Among the 262 respondents, 57 per cent affirmed that they went abroad to gain economic solvency. Economic factors mostly relate to financial hardship driven by the inability of male members to meet all the family expenses.

Underemployment and unemployment are also major reasons for pushing women to migrate. For the betterment of their family and children, women decide to leave the country for overseas employment. 9 per cent of the women migrated due to social factors. This refers to domestic violence, divorce or abandonment by the husband and social stigma. Women of this category migrate abroad to achieve economic independence and to escape their abusive condition in their family or to avoid negative social attitudes towards them.

Another social factor is discrimination towards women in the patriarchal societal structure in Bangladesh. Religious prejudice built on societal patterns is also a reason for migrating to Saudi Arabia. Climate change related impacts such as frequent cyclones, floods, droughts etc. which negatively impacted on people's livelihoods drove 8 per cent of the women interviewed to migrate. On the other hand, 26 per cent of women claimed they migrated because they were highly influenced by the agents or the sub-agent. In some cases, the sub-agent enticed the women for overseas employment by presenting an almost imaginary and lucrative workplace scenario.

3.3 Recruitment history of returnee women migrant workers

Year of migration and return

Out of 262 returnee women migrant workers who sought legal assistance in 2019, nearly 10 per cent of migrated during the period of 2010-2014 while 90 per cent migrated between 2015 and 2019. The majority of them returned home between 2018 and 2019.

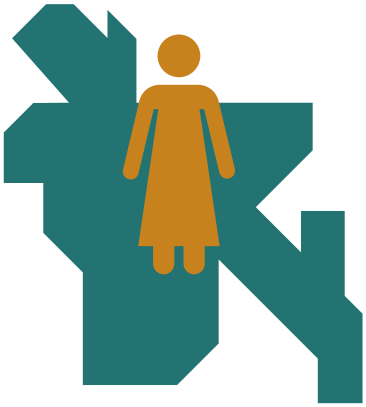
Recruitment medium

Nearly 95 per cent of the 262 returnee women migrant workers claimed that they were recruited by local sub-agents. Only 3 per cent of women affirmed that they were recruited directly by the recruiting agent. Some women got the address of their recruiting agent from friends and relatives while some women collected the name of the recruiting agent from the website of the BMET. Approximately 2 per cent of the women were directly recruited by their family members, such as a sister or brother.

5. DW: https://rb.gy/c5gtos https://probashi.portal.gov.bd/sites/default/files/files/probashi.portal.gov.bd/page/32d109f6_cde9_473a_bda1_d575db691d45/Safe%20migration%20for%20female%20workers.pdf

Recruitment history of returnee women migrant workers

These figures are based on the lived experiences of 262 returned women migrant workers who seek justice.



Year of migration and return



10% migrated between 2010 and 2014

90% migrated between 2015 and 2019

The majority of them returned home between 2018 and 2019.

Job contracts

88% were not provided with a written job contract



45% did not receive the level of salary or benefits promised by the agents/ sub-agents

Only **12%** received a job contract BEFORE migration

OF THEM

- **47%** a few hours before flight
- **31%** a few days before flight
- **22%** a few weeks before flight

Most of the women were unable to understand their job contract as it was written in Arabic and English.

Pre-departure orientation

The Government of Bangladesh require women domestic workers to attend a 30-day pre-departure orientation course as a condition of getting 'emigration clearance'.

24% did not attend, or only partly attended, a course

The agents/sub-agents managed the completion certificate on their behalf.

Recruitment medium

95% were recruited by local sub-agents

2% were recruited directly by family members

3% were recruited directly by the recruiting agent

Medical certificates

Destination countries, particularly the GCC, require the taking of a medical test and good health as conditions for approval to migrate. A certificate of good health is also required in order to get a work and residence permit upon arrival.

17% were sent abroad with a fake certificate, having been screened as 'UNFIT'

Migration costs

According to the Bangladesh Government rules, the recruitment costs to women migrant domestic workers should be 'zero' for any country destination.

65% of the women had paid money for their migration to their agents/sub-agents

The average annual income for a migrant's family is BDT 50,700 (US$ 600)

- **20%** paid BDT 5,000 – 20,000 (US$ 60 – 238)
- **28%** paid BDT 20,001 – 50,000 (US$ 238 – 595)
- **15%** paid BDT 50,001 – 100,000 (US$ 595 – 1,200)
- **2%** paid more than BDT 100,001 (US$ 1,200)

Job contracts

88 per cent of the 262 returnee women migrant workers reported that they were not provided with a 'job contract'. They were told about the employer, job responsibilities, salaries, benefits through informal discussions. Very few women interviewed had any knowledge about the 'job contract'. They did not know the use and importance of the 'job contract'. They affirmed that the agent/sub-agent never told them about the 'job contract'. Nearly 45 per cent of returnee women testified that they had not received the same amount of salary and benefits that they were promised by the agent/sub-agents.

Only 12 per cent of the returnee women migrant workers confirmed that they had received a 'job contract' before migration. Among them, around 47 per cent received the 'job contract' a few hours before their flights, 31 per cent affirmed that they had received the 'job contract' a few days before their flights, and 22 per cent had received the contract a few weeks before their flights. Most of the women said they were unable to understand the job contract as it was written in Arabic and English. The agents/sub-agent provided no clear information about the conditions of the job contract, rather they forced the women to sign the contract by saying that without signing the paper nobody could migrate.

Pre-departure Orientation (PDO)

Since 2007, the Government of Bangladesh has ensured mandatory pre-departure orientation for women domestic workers. Initially, the duration of the pre-departure orientation was 21 days which has been extended to 30 days in 2015. The submission of the pre-departure orientation completion certificate is a condition to get 'emigration clearance' issued by BMET for official migration for employment.

Data of the returnee migrant workers show that around 24 per cent of the women did not attend the pre-departure orientation at all, or they had attended only a few days of the 30-day course. The agents/sub-agents managed the completion certificate on their behalf. The women migrant workers who migrated without pre-departure orientation mostly travelled in the years between 2015 and 2019 suggesting the falsification of certificates is becoming more common.

Medical certificates

According to the regulation of labour destination countries, particularly the GCC, proven health fitness through a mandatory medical test is a condition to get approval to migrate to these countries. Health fitness is also a mandatory condition in order to get the work and residence permit upon arrival and any subsequent work permit extensions.

Therefore, the migrant workers must complete a medical test at the pre-departure stage. They are screened for approximately 21 diseases, both infectious and non-infectious diseases, including. HIV/AIDS, Hepatitis, leprosy and TB. For women, a pregnancy test is also compulsory. The positive result of any test is a cause of non-eligibility for obtaining an overseas job. Data for the returnee women migrant workers show that nearly 18 per cent were sent abroad for work despite being screened as 'UNFIT' (as known in the recruitment system) in the first medical test. They were therefore sent abroad using a fake certificate.

Migration costs

The recruitment costs for women migrant domestic workers should be 'zero' for any country as per the Government rules. The recruitment of women domestic workers is conducted through an online system called 'MUSANED' under the MoU signed between the Government of Bangladesh and Saudi Arabia. Under the system, the employers pay a certain amount in advance to the concerned recruiting agent in Bangladesh for completion of the recruitment process. There is no online recruitment system but the 'zero' migration cost for women is equally applicable in other countries as well.

Nevertheless, 65 per cent of the 262 returnee women migrant workers testified that they had paid money for their migration as the agents/sub-agents had charged them. They could not migrate if they did not pay. 20 per cent of the women confirmed they had to pay an amount ranging from BDT 5000 to 20,000 (US$ 60 – 238) while 28 per cent paid an amount ranging from BDT 21,000 to 50,000 (US$ 250 – 595), 15 per cent paid BDT 51,000 – 100,000 (US$ 600 – 1,190) and the rest, 2 per cent, paid more.

3.4 Violations faced by women migrant workers during recruitment and employment

Violence during recruitment

Nearly 43 per cent of the returnee women migrant workers (out of 262) asserted that they strongly felt that they had become the victim of abuse and exploitation by the agents and sub-agents in Bangladesh. They emphasised that the agents and sub-agents had intentionally abused their lack of knowledge about the migration process and they provided disinformation about the salary, the employers' family, the amount of work at the employer's house etc.

Some women migrant workers claimed that the agent/sub-agent told them they would be sent to one country, but they ended up in another country with a completely different type of job to the one they were told about. The women blamed the agent/sub-agent for their sufferings and exploitations in the destination countries. The majority of them said that the agent/sub-agent had hardly extended any assistance to them to rescue them from the exploitative situation at the employers' house or at the office of the recruiting agent in the destination country. And this was the case even though most of the time, the agent/sub-agent was aware of the womens' situation.

Some women reported that the agent/sub-agent in Bangladesh took a good amount of money from their families to assist them to return home but they cheated the family as they did not do anything for their return.

Violence during employment

All 262 returnee women migrant workers testified that they had been abused physically, psychologically, or sexually at the employers' house. Around 60 per cent of the women (156 out of 262) reported they often faced physical torture. The majority of returnee women migrant workers shared their experiences of brutal physical torture by the employers, family members, relatives and others.

Nearly half of the women (133 out of 262) asserted that they had become the victim of forced labour. They had to work around 14 to 18 hours a day with rarely any rest time, which is far above the stipulated expected working hours. Many of them said that they were assaulted physically, deprived of food for the day, and encountered humiliating and abusive words if they refused to do any work. Some women said they have had no mercy even when they were ill. Around 37 per cent (98 out of 262) of the women

Violations faced by women

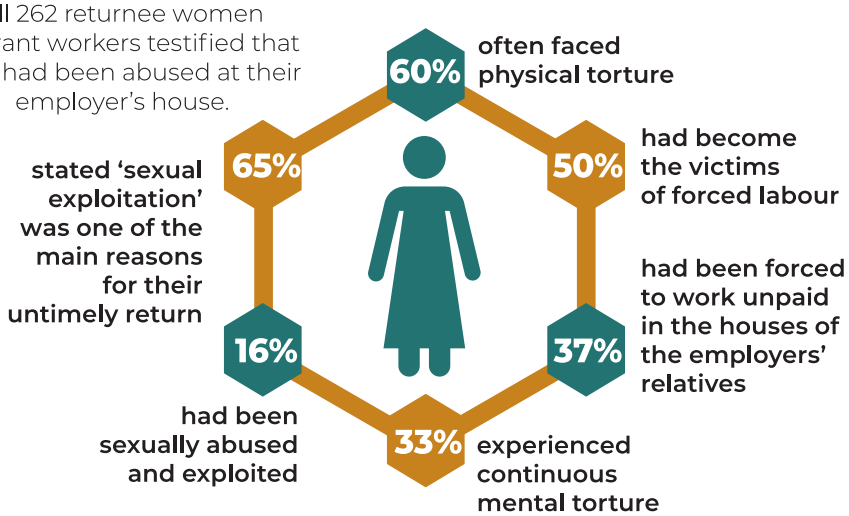
During recruitment

Women emphasised that the agents and sub-agents had intentionally abused their lack of knowledge about the migration process.



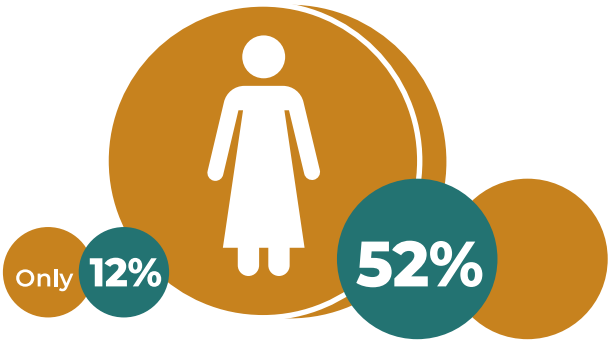
During employment

All 262 returnee women migrant workers testified that they had been abused at their employer's house.



Violations faced by women

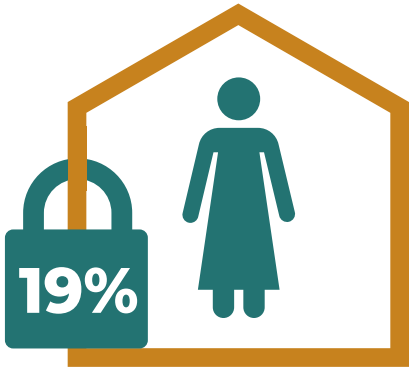
Economic exploitation



were paid salaries regularly

received salaries irregularly

Exploitation by agents



had been locked up, physically tortured, sexually abused or forced to work unpaid by the recruiting agents in the destination countries

claimed that they had been forced to work in several houses of the employers' relatives. They were never paid any additional wages for the extra work they did in other houses. Some employers even used these women as 'freelance domestic workers' for commercial purposes.

One 33 per cent of the returnee women (87 out of 262) claimed that they experienced continuous mental torture through disrespect and humiliation in different forms i.e. using slang frequently, and even through various threats such as being told they will never be allowed to return home, they would be sent to jail if the employer filed a false theft case against them, or in extreme cases, they would be killed and never be able to meet their family again. Most of the returnee women migrants said they had led an inhumane life as a slave not as a domestic worker with minimum human dignity. At least one woman lost her memory entirely because of frequent mental and physical torture. According to Wage Earners Welfare Board report, 140 women migrants died abroad in different destination countries in 2019, most of whom allegedly committed suicide[7], while Brac reported[8] 24 suicides among Bangladeshi women migrant workers abroad in 2019.

Around 16 per cent (41 out of 262) of the returnee women migrant workers reported that they had been sexually abused and exploited at the employers' house or at the offices of the recruiting agent in the destination countries. Among them, two-thirds (27 out of 41) of the women asserted that 'sexual exploitation' was one of the main reasons for their untimely and unsuccessful return. Some women shared their experiences of sexual assaults by the father and the sons one after another while some women shared that the employers used to invite their friends who then raped them in turn.

The women migrant workers had also been economically exploited by their employers. Around 36 per cent of the 262 women were forced to return home without salaries for periods of work ranging from 1 month to 48 months (229 due salaries). Only 12 per cent of the women asserted that they were paid salaries regularly, while nearly 52 per cent said they used to receive salaries irregularly. The employers used to hold their salaries for four months or more for no clear reason.

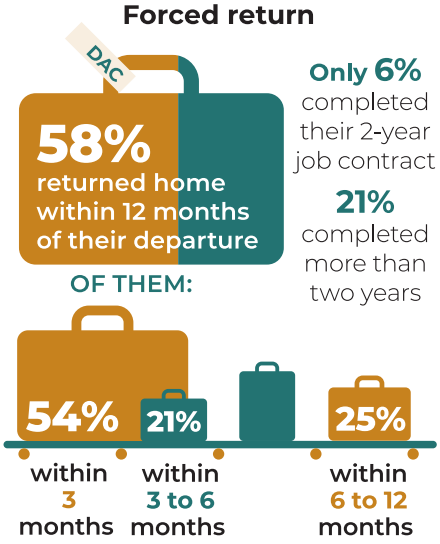
7. https://www.newagebd.net/article/95641/4000-migrants-brought-home-dead-in-2019
8. https://www.dhakatribune.com/bangladesh/2019/12/30/migrant-workers-from-bangladesh-too-many-die-on-foreign-shores

The consequences of violations on the women migrant workers

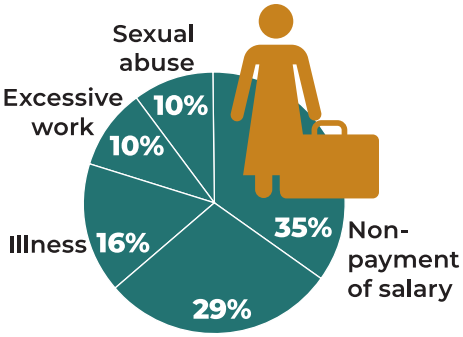
Deception by agents, and torture, abuse, and exploitation by employers, forced many women migrant workers to return home before the end of their contracts.



Forced return



Reasons for returning home



Other reasons given

- Sent with false medical certificates
- No employer when they arrived
- Abandoned by the employer

As well as employers, many women migrant workers reported that the staff of the recruiting agents in destination countries often tortured and exploited them in their offices. Nearly one fifth (19 per cent) of the returnee women migrant workers claimed that they had been locked in their recruiting agent's offices, physically tortured, sexually abused and often forced to work unpaid in different houses on a daily basis by the recruiting agents in the destination countries. These violations mostly happened when the women were brought to the recruiting agent's office to resolve disputes between the workers and the employers.

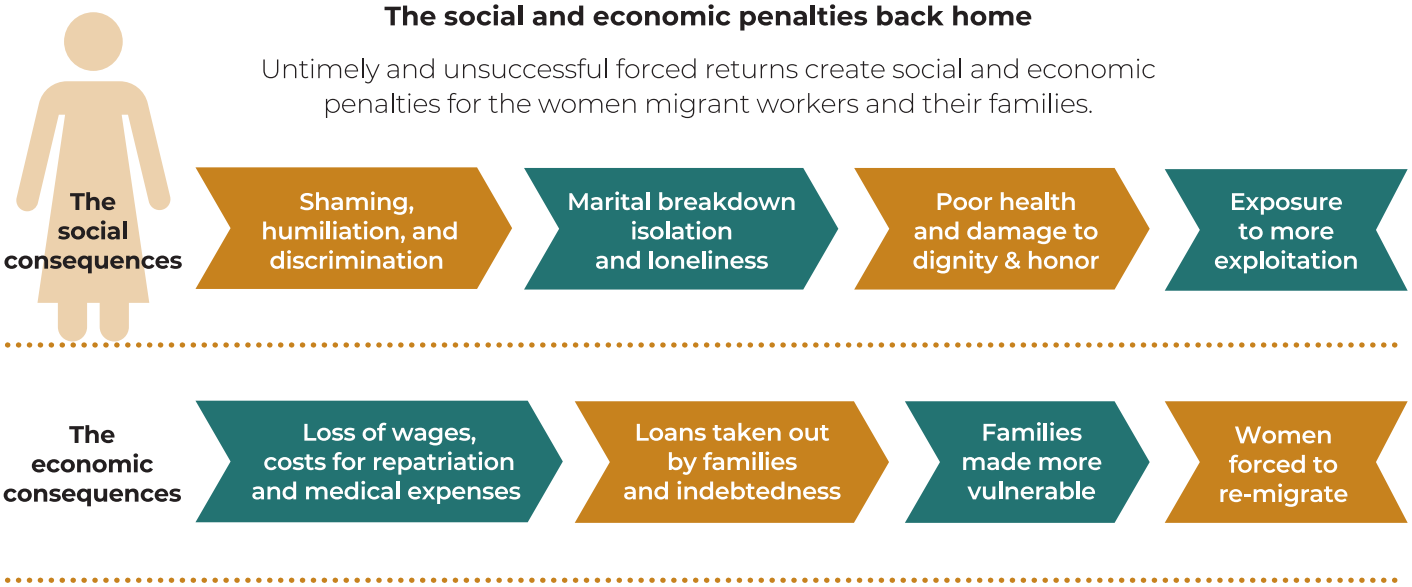
3.5 Consequences of violations on the returnee women migrant workers

Forced return

The difficulties of women migrant workers during employment caused by the untrue information about the job nature, false promises of salaries and benefits on the one hand and frequent torture, abuse, exploitation by the employers on the other, forced many women migrant workers to return home before the end of their contract.

Nearly 58 per cent (151 out of 262) of the returnee women migrant workers returned home within 12 months of their initial migration. Of them, around 54 per cent returned less than three months after their departure from Bangladesh, while 21 per cent returned within three to six months and 25 per cent returned within six to twelve months. Only 6 per cent of the women migrant workers were able to complete their two-year job contract, and 21 per cent completed more than two years. The main reasons for return were illness (29 per cent), physical torture (16 per cent), sexual abuse

The consequences of violations on the women migrant workers



(10 per cent), excessive work (10 per cent) and non-payment of salary (35 per cent). Of those sent abroad with false medical certificates, six returnee women migrant workers asserted that they had been forced to return because they had failed the medical test in the destination countries. Some women said they were not received by any employer when they had arrived while some others reported that they were simply abandoned by the employers.

Social and economic penalties back home

The untimely and unsuccessful forced return creates social and economic penalties on the women migrant workers and their families. The social consequences can turn into divorce, separation, non-acceptance by husbands and/or families. On the other hand, in a predominantly patriarchal society like Bangladesh, where victim blaming is a common practice, the women reported facing labels such as 'disgraceful' and 'prostitute'. Such humiliation, disrespect and discrimination pushed them into isolation and loneliness, impacting their mental health. The social consequences cause enormous damage to human dignity and honor that destroys self-confidence, productivity, as well as the intellectual and spiritual power of a human being. Some women said that their marriage broke down because of their unsuccessful return. Many returnee women migrant workers said that their life turned into a painful nightmare, which nobody else could understand. They reported that nobody understood that what happened to them was not their fault; they had become the victim of abuse and exploitation by inhumane people.

The women migrant workers who returned home with illnesses rarely had financial capacity for treatment. Many women migrant workers said that they had been suffering from various diseases without treatment, which was painful for them. Families of those women migrant workers also pay for this. They often take loans for the treatment and become indebted. The unsuccessful and untimely return made many women migrant workers further indebted and put their familes in a more vulnerable situation. This forced many women migrant workers to re-migrate and fall into a vicious cycle of abuse and exploitation.

3.6 Access to justice for returnee women migrant workers

The OEMA 2013 gives migrant workers the right to file complaints in the BMET 'arbitration cell' without forsaking their right to file a criminal case in the court of the Judicial/Metropolitan Magistrate. Around 58 per cent (153 out of 262) of the returnee women migrant workers asserted that they had no idea about the law and the legal rights of migrant workers. 65 per cent (171 out of 262) of the returnee women said they wanted to take legal action against the agent/sub-agent. Despite this, all of them said they were not be able to file complaints to the BMET 'arbitration' or cases in the court. Many of them had no proof or evidence against the perpetrators. Some women fear stigma if they disclose their issues of abuse and exploitation. Some women are frightened of threats from the agents/sub-agents. The majority of women migrant workers have negative impressions of the legal system because of the time-consuming and expensive process.

BMET 'Arbitration'

This research follows the cases of 123 of the 262 returnee women who filed complaints to the BMET 'arbitration' in 2019, mostly for recovering unpaid salaries and compensation for forced work, physical and psychological torture, sexual abuse as well as medical treatment costs. Of the 123 cases, nearly 31 per cent of them had been resolved by December 2019. The remaining 69 per cent have not been resolved yet.

The Overseas Employment and Migration Management Rules 2017 sets out the operational procedures of the BMET 'arbitration', but the mentioned timeframe to complete each arbitration is unclear. The rule is to complete each case within a maximum of 90 working days.

Of the women migrant workers' 123 cases, 26 per cent (32 cases out of 123) were resolved within 90 days of filing written complaints to the BMET, 5 per cent (6 cases out of 123) were resolved between 90 and 180 days, but 69 per cent (85) of the complaints are yet to be resolved. Of those cases that are not yet resolved, around 58 per cent (48 out of 85) have never been called by the 'arbitration cell' for hearing. 41 per cent of the women complainants (35 out of 85) had been called for one hearing in the arbitration. The rest of the women had to attend several hearings with no outcome at all.

The experiences of the resolved cases of 38 returnee women migrant workers in the BMET arbitration showed that around 54 per cent of the women received an amount between BDT 5,000 and BDT 20,000 (US$ 60 – 240), nearly 26 per cent of the women received an amount between BDT 20,000 and BDT 40,000 (US$ 240 – 480), and around 20 percent of the women received BDT 40,000 to BDT 80,000 (US$ 480 – 960). None of these awards was fair compensation for the amount owed or the psychological impact of abuse and exploitation faced by the migrants. This is to note that the arbitration considers the due salaries of migrant workers as compensation. The social costs caused by untimely and unsuccessful return due to unfair and unethical recruitment practices, physical and psychological illness due to torture, as well as stigma and discrimination is not considered in the arbitration even though social costs have huge negative impacts on the lives of migrant workers. It often reduces the socio-economic status of migrant workers and their families.

The women migrant workers shared that they often faced threats from the representatives of recruiting agents and sub-agents, as well as humiliation, unequal and unfair treatment in the arbitration process. Many women migrant workers who appeared in the BMET arbitration reported that they felt revictimised while they were claiming their rights to justice and remedies. The migrant workers generally come from poor educational, social and financial backgrounds, which results in a lack of knowledge about the law and the arbitration system, and low confidence to negotiate in the arbitration. The using of words, gestures, sitting arrangements, long waiting hours etc. further weaken the self-esteem and confidence of the migrant workers and restrain them from equal participation in the arbitration process.

The lack of structural and standard operational procedures to conduct BMET 'arbitration' not only puts the returnee migrant workers, but also the civil society organisations which provide legal aid to the survivor migrant workers, in a humiliating and confrontational situation.

Access to justice for returnee migrant workers

The Overseas Employment and Migrant Act (OEMA) 2013 ensures migrant workers' rights to file complaints in the Bureau of Manpower, Employment and Training (BMET) 'arbitration cell' without forsaking their rights to file a criminal case in the court of the Judicial/ Metropolitan Magistrate.





58% of women had no idea about the law and their legal rights



65% wanted to take legal action against the agent/sub-agent



100% said they were not be able to file complaints to the BMET 'arbitration' or cases in the court

Reasons given for not filing complaints

- No proof or evidence against the perpetrators
- Fear of stigma if they disclose their abuse and exploitation
- A negative impression of the legal system
- Fear of threats from the agents/ sub-agents

BMET arbitration

123 returnee women filed complaints to the BMET 'arbitration' in 2019, mostly for recovering unpaid salaries and compensation for forced work, physical and psychological torture, sexual abuse and medical treatment costs.



By December 2019

Of the complaints which are not yet resolved



58% of cases had never been called by the arbitration cell for hearing

41% of the women were called for 1 hearing in the arbitration

1% of the women had to attend several hearings but with no outcome

The timeframe for court cases

Cases filed in court must be concluded within 4 months, but there is an option of extending the trial period by a maximum of 2 months. The judiciary exploits this option resulting in trials being a never-ending cycle of being extended every 2 months.

The legally required timeframe



The timeframe in reality



Compensation awarded in the resolved 38 cases



54% received **BDT 5,000 – 20,000** (US$ 60 – 240)



26% received **BDT 20,000 – 40,000** (US$ 240 – 480)



20% received **BDT 40,000 – 80,000** (US$ 480 – 960)

Fair compensation

Theses awards do not fairly compensate for the amount owed or the impact of abuse and exploitation faced by the migrants.

On average, the women's compensation was only **31%** of the sum requested

In 2 cases, the women's compensation was only **3%** of the sum requested

Court cases

Migrant's access to court cases is still limited for different reasons. This research followed the cases of migrant workers in the Chief Judicial/Metropolitan courts in only five districts in Bangladesh – Dhaka, Narsingdi, Narayangonj, Munshigonj and Faridpur. During 2019, only six cases were filed by the returnee women migrant workers in those courts. Of them, five women returned from the GCC countries and one woman was rescued from India.

Out of five labour migration cases, three cases were filed in the Chief Judicial Magistrate's Court in Narsingdi and Faridpur districts under the OEMA 2013, and two cases were filed in the 'Special Tribunal for Women and Children' (empowered for dealing with human trafficking cases) in Dhaka and Narsingdi under the Human Trafficking Prevention and Suppression Act 2012.

None of the cases filed in the Chief Judicial Magistrate's Court have been resolved (up to July 2020). As per the OEMA 2013, the trial of the case must be concluded within four months from the date of filing the case in the court. In cases of exceptional circumstances, the trial period could be extended to a maximum of two months, based on a progress report of the case stating the reasons for such delay.

The research found that the police investigation report against any single case was not submitted to the court in due time. But during the investigation of each case, the accused threatened the complainant to withdraw the case. In two cases, they forced them to withdraw the case by providing a lump sum as compensation and by misusing their money, muscle and political affiliation. In one case, the accused attacked one of the complainants and her family and wounded them critically. Despite that, there was no progress in the police investigation in the seven months up to March 2020.

Of three cases which were filed to the Women and Children Repression Prevention Tribunal under the Human Trafficking and Suppression Act 2012 (empowered for dealing the human trafficking cases), two cases were identified as labour trafficking in the Middle East Countries, while one case was trafficking to India for sexual exploitation. This research highlighted only two labour trafficking cases. One case had been dismissed by the court on three arguments.

The first argument was that the recruitment and the job placement agencies did not have scope to control all acts which happened to the complainant during her stay abroad. The second argument was that the complainant could not provide the addresses of the house in Saudi Arabia where she was supposed to be employed and the house where she was actually employed, as evidence.

The judgement acknowledged the lack of migration governance from grassroots to the national level but judged that "the recruitment happened on mutual exchange of information and cooperation." The most surprising point was that the judgement considered that "the recruitment conducted by the authorised recruiting agent with the approval of concerned government authority must not be labeled a 'human trafficking' case since such a judgement might create a negative impact on the flow of labour migration from Bangladesh," Prevention and Suppression of Human Trafficking case number 22/19 in Women and Children Repression Prevention Tribunal, Narshingdi.
The other case is in progress. The investigation report had been submitted after almost four months of the court order.

CASE STUDY 1: A case filed at BMET Arbitration

Naima (Pseudonym) (34) escaped her abusive employer with a critical health condition. The employer used to beat her mercilessly. Naima fell sick and urged her husband to save her life. The sub-agent in Bangladesh charged her husband BDT 30,000 (US$ 357) to arrange for her to return to Bangladesh. In Saudi Arabia, Naima worked for three months, and the employer did not even pay her a single month's salary. Naima said, "Besides due salary, I never received the promised salary by the sub-agent."

Upon her return to Bangladesh, she complained through the BMET for compensation in 2019. After three hearings, the BMET official settled her complaint with the agency. The award was less than half of the amount that Naima had claimed. However, the hearing process was torturous for Naima. She went through intimidation and humiliation multiple times.

At her first hearing, the agency's representative questioned her 'character,' and blamed her saying, "It was her fault that she couldn't work." The agent even threatened her in front of the BMET official. During the second hearing, the agency's representative threatened her again and said that she must go with him to the agency's office to settle the complaint. The representative said if Naima didn't go with him, the agency would not pay any compensation. However, Naima was frightened and did not agree to go with him.

At the final hearing, Naima was forced to settle her complaint with a tiny amount of compensation. Naima said, "Had I been aware of this unjust reality, I would never have filed a complaint." Naima was abused abroad because of the recruiting agency in Bangladesh and humiliated at her home while she was hoping for justice.

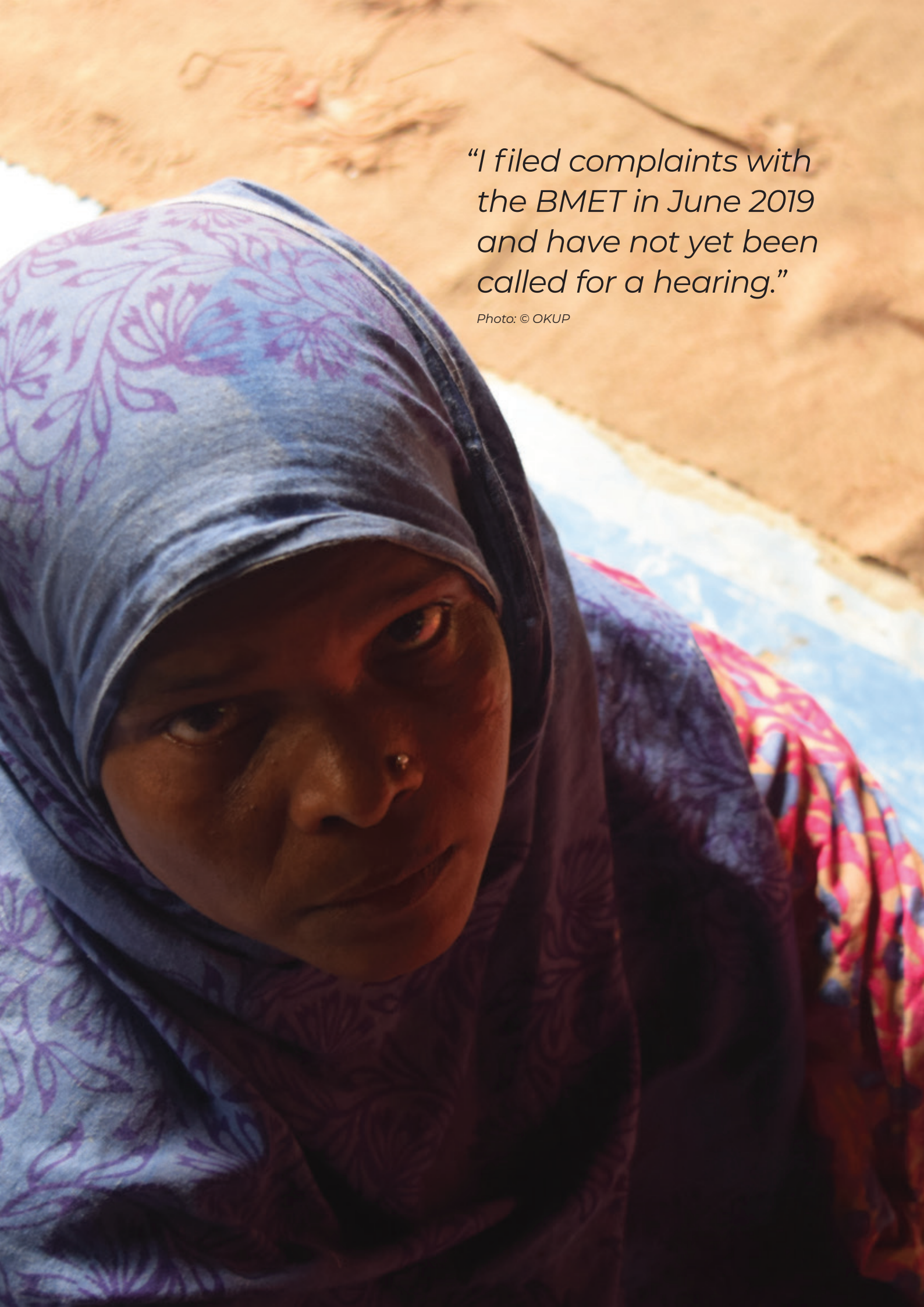
CASE STUDY 2: A case filed under overseas employment and the OEMA 2013

"Their (employer) main goal was to force me into the sex trade though I denied," said Akter (Pseudonym) (36), a returnee woman migrant worker from Saudi Arabia. As Akter testified in 2019, the employer sent her to different houses in the name of work. She realised within a couple of days that the employer had sent her there for sex-trade only. She paid BDT 60,000 (US$ 714) as her migration cost.

"Then, every time they tried to touch me, I screamed with terror as if I was about to die. So, most of the time, they could not succeed," Akter added. The more she resisted, the more the level of torture increased. Yet she never agreed. Thus, being frustrated, one day the employer left her on an empty road and she got caught by the police who sent her to jail. She was there two months before returning home.

After returning home, Akter, hoping to get compensation, filed a case in August 2019 against the recruiting agent under the OEMA 2013. Since then, the recruiting agent has been threatening Akter to withdraw the case. Though she was frightened, she did not bow down to them. Suddenly, the agent attacked her and her sister and left them severely injured. She filed a FIR against the local agent which did not bring any result.

"The police investigation has been in progress for the last 10 months. I don't know what will happen, or when but I want justice and compensation for what happened to me," Akter sighs.



"I filed complaints with the BMET in June 2019 and have not yet been called for a hearing."

Photo: © OKUP

4 Access to justice: Opportunities and challenges

'Access to justice' is neither improving an individual's access to the formal and informal system nor a mere representation of individuals in the proceedings. 'Access to justice' is something holistic that ensures people's ability to seek and obtain justice and remedies through the formal and informal institutions for any grievances in compliance with human rights standards. 'Access to justice' usually serves two purposes: (i) ensuring that people have physical access to the existing justice delivery system and (ii) making sure that all justice delivery systems both formal and informal are fair, equitable and speedy. However, the essential precondition of access to justice is that the laws and the policies must be impartial and proportionate. There must be physical access to a justice mechanism, procedural fairness together with quality of the outcome.

This research tried to explore opportunities and challenges in access to justice of the returnee women migrant workers in the formal justice system – in the court and in the existing Alternative Dispute Resolution (ADR) system. The research analysed existing policies and laws especially the OEMA 2013 and the Human Trafficking Prevention and Suppression Act 2012 in order to understand if the current justice system is fair and just for migrant workers.

4.1. Opportunities

Superiority and complementarity of the Act

The Government of Bangladesh enacted the OEMA 2013 as a special law to regulate recruitment for the overseas employment process and ensure migrant workers' rights to access justice. The Act considers any fault or fraud that occurs in the recruitment process as a critical offence against migrant workers and it will override all existing effective laws including the Penal Code 1860. In addition, the OEMA 2013 supplements the Prevention of Human Trafficking and Suppression Act 2012. The complementarity of the two Acts strengthened migrant workers' access to justice and remedies.

According to the OEMA 2013, any act relating to the recruitment for overseas employment by providing false information and promises of high wages, benefits and facilities, or by detaining passport, visa, or any other documents without valid reason, or by receiving or attempting to receive any amount by giving false undertaking to provide employment abroad is a violation of the Act and treated as a punishable offence. The anti-human trafficking Act defines any act relating to employment overseas by enticing or assisting somebody vulnerable due to socio-economic or environmental conditions with the purpose of forced labour, debt-bondage, slavery or other forms of exploitation is the act of 'human trafficking'. The Act ensured rigorous physical and monetary punishment for the guilty ranging from the death sentence to imprisonment for at least three months.

Victim centric restorative justice

Both the Acts – Overseas Employment and Migrant Act 2013 and Prevention of Human Trafficking and Suppression Act 2012 – are built on the principle of victim centric restorative justice. The Acts categorically recognised that the migrant workers often fall into the traps of unfair and corrupt recruitment practices and therefore, ensured migrant workers' easy access to the justice delivery system as well as fair, equitable and speedy justice. The OEMA 2013 ensured migrant workers' physical access to the justice delivery system both in the formal court (Art. 28) and in the semi-formal 'arbitration' system (Art. 41) by filing case/complaints against any person including recruiting agents for any offence under the Act (Art 31, 32, 33, 34, 35). The Act ensured penalties both of imprisonment and monetary for the recruiting agent or any person concerned to committing the offence. Without forsaking the rights to file case/complaints under the OEMA 2013.

The PSHTA 2012 considers legal presumption as to committing a human trafficking offence against any person charged under the Act unless the contrary is proved (section 18). The Act has ensured the right to privacy and confidentiality, right to repatriation and return, right to protection of victim and witness, social and economic reintegration, financial compensation for the victim etc. The anti-human trafficking act exempts any victim of the human trafficking offence from conviction (section 9 -19). Both the Acts ensured legal aid provision for the victim and survivor migrant workers.

Extraterritorial application

The OEMA 2013 has made liable the recruiting agent jointly with the employer to any breaches in the condition(s) of the employment contract which stipulates wages, accommodation facilities, duration of employment, compensation amount in the event of death or injury, cost of migration to and return etc. (Art. 22). On the other hand, the anti-human trafficking Act has no territorial obligation. It considers any offence defined under the Act against any Bangladeshi citizen outside the territory of Bangladesh (section 5). Therefore, under both the Acts, migrant workers can seek justice for any kind of exploitation, abuse, rights violation they encounter during employment in the countries of destination.

Arbitration system

The most significant implication of the OEMA 2013 is the provision of institutional 'Arbitration' conducted by the authorised Government authority. According to the Bangladesh Arbitration Act 2001, 'Arbitration' means any arbitration administered by a permanent institution. The Migration Management Rules 2017 in reference to section 41 of the OEMA 2013 authorises power to the Bureau of Manpower Employment and Training (BMET) to conduct the 'arbitration'. This is a semi-formal system of dispute resolution among the aggrieved migrant worker, the concerned recruiting agent or any other person engaged in the recruitment process.

The Act allows the arbitrator to conduct investigations of any complaints of fraud, extortion or a breach of employment contract filed by migrant workers and dispose the complaints directly or through 'arbitration' (salish). This reflects the notion of the inquisitorial justice system where the arbitrator can directly investigate and declare ' arbitral award'.

This system has created a huge opportunity for the migrant workers to get proportionate compensation and fair justice. In an arbitration hearing, any form of evidence can be produced. The provision of evidence Act 1860 is not strictly followed here. Therefore, the arbitrators have the opportunity to deploy their inquisitorial mind while conducting the arbitration.

4.2 Challenges

4.2.1 Challenges in arbitration

No dedicated arbitral tribunal

No dedicated 'arbitral tribunal' is established yet. The migrant workers file complaints for arbitration by written application to the Director General of BMET who then usually forms an ad hoc arbitration cell for handling the complaint. According to the Migration Management Rules 2017, the Government can appoint any officer of the Bureau of Manpower Employment and Training (BMET) as 'arbitrator' for a complaint. It is said that the BMET established an arbitration cell for handling complaints by the women migrant workers. However, there is no official gazette in this regard. The officials responsible for the women migrant workers' arbitration perform this responsibility in addition to their regular job in the office. They rarely have a legal background or expertise in conducting arbitration.

The absence of a dedicated arbitral tribunal as well as a pool of expert 'arbitrators' causes a huge challenge to ensure transparency and accountability in accessing justice through arbitration.

Lack of standard arbitration procedure

Section 41 (3) of the OEMA 2013 states the need for arbitration procedures determined by the rules. There are no specific rules for the arbitration yet, but the Overseas Employment and Migration Management Rules 2017 contains two articles in this regard. According to that article (No.15), the appointed officer from the BMET must issue a written notice to the complainant and the accused to attend arbitration on a date and in a particular place. The officer is responsible for resolving complaints through a hearing for both parties and if needed, taking witness from a third party and examining relevant records and documents. However, there is no clear detail about how to conduct the whole arbitration process.

CASE STUDY 3: Case filed under human trafficking prevention Act 2012

Sumana (Pseudonym) (26): "The local agent (works for a licensed recruiting agent) promised me a cleaner's job at a hospital in Saudi Arabia. I paid BDT 50,000 (US$ 595) for a cleaner's visa as he promised. After receiving the smart card, I saw the visa was for domestic work. I disagreed to go with, but he assured me a better job," said Suma.

Being a single mother with financial burden Suma had little option to refuse the agent. She therefore travelled to Saudi Arabia in 2018 with that visa. She had to work in a family of 25 members. After completing all her tasks there, the house lady often used to take her to the houses of her relatives. Every week, she had to work for five to six families. She had to do this all with only one meal per day. On top of that they would use shoes or sticks to beat her. The lashings were too much to survive.

"Over and above that, the employer's son started harassing me sexually. I made a complaint to the madam, but she did not take any step to stop him. I tried to save myself many times by hiding in the bathroom. He used to rape me after injecting sleeping drugs in my body. He threatened to cut me into pieces. My dream of a better life broke into pieces. I led a terrible time," frightened Suma shared.

She then managed to call her family and requested them to get her back home. They begged to the agent to save her life. The agent took BDT 50,000 (US$ 595) again from the family to bring her back but then did nothing. Her family then went to the BMET and applied for her return. After five months, the employer dropped her at the recruiting agency's office in Saudi Arabia.

"At the recruiting agency's office, I was physically tortured by the agency people and fainted. When I regained my senses, I discovered myself on a hospital bed. Around a week later, they sent me to jail where I spent six months before returning home in 2019. I have received only a month's salary but returned with numerous scars on my body and mind," said Suma.

After her return, Suma filed a case against the agent and the recruiting agent under the Human Trafficking Prevention Act. It has almost been a year that the case is under trial. "I am facing continuous threats from the agent to withdraw the case. I do not want to compromise. I am waiting for justice," said Suma with all her courage.

The lack of standard procedures causes huge challenges to ensuring a transparent and accountable arbitration process. OKUP's work supporting women migrant workers in accessing the arbitration process identified discrepancies in conducting hearings, discriminatory treatment with migrant workers, predisposed judgements etc. Of 123 migrant workers who requested OKUP to aid in filing complaints to the arbitration, 31 per cent of complaints (out of 123) were resolved while 69 per cent were not resolved in 2019. Among the unresolved cases, 58 per cent (48 out of 85 cases) of women migrants had never been called for the hearing. 41 per cent of women migrants were called for one hearing while the rest had to attend several hearings with no outcome at all. Nobody knows if their complaints are already dismissed or still being processed.

The recruiting agents do not like to attend the arbitration hearings. Often, they remain absent or attend the arbitration hearings in an untimely manner that leave migrant workers sitting hours and hours. The lack of disciplinary measures leads to the recruiting agents disobeying the arbitration process intentionally to discourage migrant workers to continue with their complaint, make the process prolonged and delay justice for the migrants. The absence of specific procedures for investigation of complaints or documentation and monitoring of the arbitration process also hinders migrant workers getting justice from the process.



Shalina (42) was a domestic worker in Saudi Arabia. OKUP supported her to claim her final four months' salary which was owed by her employers.*
**Shalina's name has been changed to protect her identity*
Photo: © Chloe Sideserf / CAFOD

There are examples that the officials of the BMET force migrant workers to resolve the complaints directly with the recruiting agents which often push them in to a more vulnerable situation. The lack of 'code of conduct' for all relevant parties including the officials and staff involved is another critical challenge in providing justice through arbitration particularly as the migrant workers hold less power in the process and are therefore vulnerable to further manipulation, discrimination and exploitation.

Centralisation system of arbitration

The arbitration process is centrally conducted at the Bureau of Manpower Employment and Training (BMET). Therefore, the migrant workers from different parts of the country need to travel to the BMET in the capital city of Bangladesh for filing complaints and attending hearings. Most of the migrant workers who come from remote villages in different parts of the country also need to stay at least one night during each travel which results in financial burden for them.

Good practice

The Migrant Workers and Overseas Filipinos Act of 1995 specified the amount of compensation in case of arbitration. According to the Act, any termination of overseas employment without partial, valid or authorised cause as defined by law or contract, the workers shall be entitled to the full reimbursement of his placement fee with interest of twelve per cent (12%) per annum, plus his salaries for the unexpired portion of his employment contract or for three (3) months for every year of the unexpired term, whichever is less.

Disproportionate compensation

The arbitrator has the authority to ensure proportionate compensation for the migrant workers based on investigation of losses and damages caused by fraud recruitment. The loss and damage should include all financial losses including recruitment costs, return costs and treatment costs in case of illness due to overloaded work, torture, abuse etc. It should also include compensation for social stigma and discrimination that the migrant workers face because of failed migration due to corrupt recruitment processes as well as exploitation and abuse in the hands of employers. However, the arbitration only considers unpaid wages as compensation. Even often the amount depends on the willingness of the recruiting agents. The arbitration rarely considers the entire financial loss and the social and psychological damages in determining compensation. Therefore, the migrant workers receive disproportionate amounts as compensation.

Data of the complaints resolved in arbitration in 2019 shows that a migrant worker received around $300 on average as compensation. Conversely, the BMET sources ensured that the complaints of 932 migrant workers resolved through arbitration at the BMET during 2019 and a total of BDT 3,570,000 (US$ 42,500) was recovered as compensation for them. The average amount of the compensation for each migrant worker was BDT 3,830 (US$ 45).

CASE STUDY 4: Default recruitment leads to sex trade

Begum (Pseudonym) (30) from Faridpur, managed to go Saudi Arabia paying BDT 70,000 (US$ 830) to the local agent in 2019 with a visa of domestic worker. After a month and a half she returned to Bangladesh. In her words, her employer was 'torturous'. She left Bangladesh without pre-departure training. The agent Rashid managed to get her a smart card.

"Though I went to do domestic work, my agent forced me towards the sex trade. They have sold me several times to several customers. I had no food to eat, no opportunity to bath and sleep. Sometimes they used to inject me with drugs," said Begum.

Begum has been severely injured. To bring her back to Bangladesh, Begum's family had to send more than BDT 180,000 (US$ 2,150). To raise the money her family sold their boat and domestic animals and took a loan with interest.

"They snatched my phone. I told the agent that I did not come here to do such work, send me back. They did not listen to me rather they threatened to kill me and do whatever work I am getting. Both father and son of a family used to rape me," Begum shared.

Begum had no idea about the amount of salary she was supposed to receive.

4.2.2 Challenges in court cases

Loopholes in the OEMA 2013

Most of the migrant workers encounter false promises of high salary, benefits and facilities. Their passports, visa copy or migration related documents are often detained. They regularly become the victim of fraud, extortion or a breach of the contract. The OEMA 2013 has defined these acts as punishable offences. The penalties of these offences are imprisonment for a term of up to five years and with a financial penalty of not less than BDT 100,000 (US$ 1,190). However, all these offences fall under the article of 31 (a), (b), (c), (d) of the Migrants Act which are bailable and compoundable. The provision of offering 'bail' to the offender is a big weakness of the Act which leaves migrant workers and their families exposed to threats from the offender. The offender can also undertake different tactics to delay the trial process, thereby overthrowing the migrant workers' opportunity to seek justice. The provision of compoundability also lessens the migrant workers' opportunity to get fair compensation. A few cases that were filed by the victim migrant workers in 2019, with the assistance of OKUP, have evidence that the offender forced the migrant workers to withdraw the case and resolve the case outside the court with a minimal amount of compensation.

According to testimonies of the 262 returnee women migrant workers, 95 per cent of the recruitment for overseas jobs takes place with the assistance of field level sub-agents who are unofficially engaged with the licensed recruiting agents. The OEMA 2013 does not recognise the presence of the sub-agent in the recruitment process. The lack of legal recognition of the sub-agents makes them unaccountable which promotes unsafe and unethical migration and a challenging justice system for migrants both in the court and in the arbitration.

Lengthy investigation period

The OEMA 2013 framed a trial period of 120 days with a maximum extension of 60 days from the date of the framing charge against the offender. The Act has not fixed any period for investigation. Therefore, there is no binding period for the completion of the investigation. The anti-trafficking Act 2012 stipulated 180 days with a maximum extension of 10 working days from the date of framing the charge to complete the trial. The Act has a special section for the investigation. The section states the investigation must be completed within 90

working days since the date the case is referred by the tribunal. The investigation can be extended for an additional 30 working days with a satisfactory explanation on the causes of not being completed within the initial 90 working days.

The research was able to follow only six cases filed by three returnee women migrant workers. Three of the cases were filed under the OEMA 2013 while the other three were filed under the Anti-Trafficking Act 2012. The research observed that the investigation of none of the cases under the Migrants Act was completed during 2019. The investigation of one case was running for 146 days while the other took 221 days.

One case had been disposed by forced mediation (salish) during investigation time. In regard to the cases under the Anti Trafficking Act, the investigation of one case was completed within 116 days which was under trial for the period of 97 days. One case was opened and dismissed by the court on the same date with the reason given that the treatment of the case as 'human trafficking' would negatively hit labour migration from Bangladesh. The other cases are still under investigation. The delay in investigation meant migrant workers risked threats and a delay to the justice they deserve.

Lack of protection

The OEMA 2013 has no provision for the protection of the victim and the witnesses. The Anti-Trafficking Act has victim protection provision but there are rarely facilities for implication of the provision. Therefore, the victim migrant workers and the witnesses remain unprotected and become more vulnerable to harm. Among the cases followed by the research, one offender attacked one woman after filing the case in the court and made her critically injured. There was no outcome following the second case on the offender for the attack. The woman is under continuous threat to withdraw the case.

The migrant workers face threats and risks not only in the court but also during arbitration. They face further exploitation and humiliation in seeking justice which is a clear violation. According to the OEMA 2013, the Government should provide legal aid to the migrant workers. But there is no such initiative yet. The migrant organisation, the civil society organisation that extends legal aid to the victim migrant workers, also face hindrance and humiliation during the arbitration process. There is little protection for migrant workers and civil society representatives.

Absence of special tribunal

Though the Prevention of Human Trafficking and Suppression Act (PHTSA) 2012 mandates to establish a Special Tribunal for the cases filed under the Act, there was rarely any initiative in this regard. Therefore, all the cases which were filed under the PHTSA 2012 during 2019 were filed in the Special Tribunal for women and children. The Government established a Special Tribunal for Human Trafficking Cases in 2020 at the divisional level. This is one step forward to expedite justice for the victims of human trafficking. However, the special tribunal for human trafficking cases needs to be established at the district level for easy access of the victims.

The OEMA 2013 specified that the cases for the violation of the Act will be filed in the first-class Judicial Magistrate's Court and/or Metropolitan Magistrate's Court. However, these courts are overburdened with numerous cases. Around 3.5 million cases remain pending in the lower court. Therefore, justice gets delayed. The general public has a negative impression about the lengthy justice procedure which has negative impacts on the migrant workers seeking justice they are entitled to.

CASE STUDY 5: Default recruitment leads to sex trade

Shamima (Pseudonym) (27, according to her passport) was only 17 when she went to Saudi Arabia in 2019. She did not attend any training or health check-up before going abroad. Under a domestic worker's visa, she was originally employed as a sex worker which she was unaware of. Shamima was never employed by any specific employer as the recruiting agent forced her to work as a sex worker.

Shamima tried her best to save herself but she suffered severe physical torture. In just three months of exile, she had to work for five employers. Among them, only at the fifth employer's house did she not face any abuse. Though the husband attempted to rape her, the wife rescued her. She was forced to drink alcohol in every house where she went to work. As a result, she would get drunk and not remember anything.

Shamima told her family about her plight and pleaded with them to save her. When her family contacted the agent, he demanded BDT 50,000 (US$ 595) to return her. After the full amount was paid, Shamima was brought back to the country. According to her, "she was being sold by turns one to another employer."

Lack of orientation on the acts among concerned stakeholders

There is little initiative from the respective ministry to undertake orientation and awareness activities among the concerned stakeholders including officials of the ministry, Bangladesh missions, labour wings and others on the one hand, and police, prosecutors and judges on the other. Therefore, the implementation of the Act is challenging. Acts such as OEMA 2013 and PSHTA 2012 were adopted in consideration of special contexts and consequences. The lack of understanding about the context and consequences of migrant workers means it is not possible to get fair justice for the victims.

There is lack of awareness of the Acts among the migrant workers and their communities. Most of the research participants admitted that they had hardly any knowledge about the Acts and their scope to seek justice. It was evident that the lack of awareness and knowledge about their right to access justice often creates indifference among migrant workers and their families to file cases/complaints. The lack of awareness and knowledge instigates taboos about the justice system, creates negative perceptions and non-confidence.

Lack of support by Bangladesh mission and labour wings abroad

Bangladesh missions and labour wings are supposed to provide all support and assistance, including legal aid, to the migrant workers abroad. There is no official data available about the number of complaints received from the migrant workers annually, how many of those are resolved, how to resolve them, or how the compensation is realised. There is rarely a reported instance where the missions and labour wings extended assistance to the Bangladeshi migrant workers abroad to file cases against the employer, or legal aid to support migrant workers who filed cases by themselves. Most of the women migrant workers (participants of this research) claimed they had rarely received any assistance in getting remedies from the abusive employers. Rather they were blamed as a wrongdoer. The lack of resources in the missions and labour wings is a challenge to the handling of complaints from the huge number of migrant workers. But this should not be an excuse where the issue of rights of the migrant workers is concerned.

Photo: © OKUP





Ralia, (40) migrated overseas to seek employment as a domestic worker. She was tortured and abused by her employer and now suffers with longterm health affects. Through OKUP's community outreach, Ralia was able to seek support and regularly attends the Migrant forum and meets with OKUP staff via the CAFOD/EU funded project.*

**Ralia's name has been changed to protect her identity.*

Photo: © Chloe Sideserf / CAFOD

5 Recommendations

Labour migration has become a major livelihood strategy for thousands of young adult Bangladeshis, both men and women. Almost a quarter of the young adults who enter the labour market every year migrate abroad in search of better employment.

Labour migration significantly contributes to both the macro and micro economy of Bangladesh. Migrant workers sent a total of US$ 76.28 billion between 2015 and 2019, which is on average US$ 15.26 billion per year. Remittances sent by the migrant workers during the last five years were nearly 6 times the level of Foreign Direct Investment (FDI) and 5 times the level of Official Development Assistance (ODA). Remittances also have effects on the micro economy in that they are invested in health, education and other essentials, and these investments play an important role in improving Bangladesh's ranking in the World Human Development Index (HDI).

Despite their contribution to the overall development of the country, and despite the Government of Bangladesh adopting laws and policies to protect migrant worker rights, migrant workers remain vulnerable to an unfair and unsafe recruitment system. This report has outlined how the nexus of agents and sub-agents entice women into migration by providing false promises and information, and by taking unlawful measures to send women abroad for employment. The agents then place women in vulnerable and dangerous situations abroad.

The return of women migrant workers empty handed with the scars of abuse and exploitation on their bodies, and with critical mental and physical illnesses creates further problems as they are often indebted, and perceived as a burden to their family. Among the respondents in the research for this report, 48 per cent of the returnee women migrant workers shared that they battle stigma and discrimination upon their return. Many of these returnees are forced to live in isolation and to reduce their mobility as they were falsely labelled with disgraceful and shameful names. The research shows that on return with unpaid debts for migration, as well as critical illness or trauma, many families are pushed further into poverty.

Though the newly adopted special laws widened opportunities for the migrant workers to access justice, there are challenges to actually get fair and equitable justice. This research presented the opportunities and the challenges in the justice system and highlighted the importance of ending the culture of impunity and its irreparable consequences. An improvement in the justice system for migrant workers is essential to promote accountable and responsible recruitment to ensure that the positive macro and micro economic impacts of labour migration continue and increase in the future.

Fair and ethical recruitment and protective safeguards that ensure decent work is Objective 6 of the Global Compact for Migration (GCM) indicators. Often women as migrant workers are excluded from local labour laws in destination countries. Though many migrant workers, mostly women, become the victim of deportation and forced labour and return from destination countries, seldom are they able to access justice in those countries. The OEMA 2013 allows survivors to take legal action against recruitment agencies in Bangladesh, and also permits them to receive legal aid in destination countries but the latter is hardly provided in the implementation.

We recommend the following changes in order to improve the institutional justice mechanisms for migrant workers, especially women.

- **The judicial process should review the Overseas Employment and Migrants' Act 2013**

  Although the OEMA 2013 extends migrant workers' rights by regulating recruiting agents, allowing migrant workers access to justice through civil suits or through arbitration at BMET, there is a need to amend the law for further extension of rights and protection of migrant workers. The areas for amendment are:

  Chapter III: Recruiting Agents, License, and such others: The OEMA 2013 should include a new provision in Chapter III in order to recognise the presence of the sub-agents in the recruitment chain. The sub-agent should be registered under the licensed recruiting agents and brought under accountability together with the agents for their roles and engagement in the recruitment process. In this regard, each licensed recruiting agent should enlist their nominated sub-agents with complete details and get them approved by the ministry of expatriate welfare and overseas employment. The profile of each approved sub-agent should be published on the website together with the name of the proprietor and the staff of the licensed recruiting agents.

  Chapter VIII: Offence, Penalties and Trial: Article 39 recognises the offences relating to false promise, fraud, extortion, detaining documents during recruitment under the article 31 (a, b, c, d), article 32 (publishing unauthorised advertisement for overseas employment), article 35 (other offences) as non-cognisable, bailable and compoundable which weakens the Act for migrant workers as most of the cases the migrant workers become the victim of the offences under those articles. Such provisions give perpetrators almost guaranteed impunity and immunity from prosecution or arbitration. Therefore, offences relating to fraudulent activities under the article 31 (a, b, c, d) should be treated as cognisable, non-compoundable, and non-bailable.

  Chapter VIII: Offence, Penalties and Trial: There is no provision for the protection of the victim and witness which put the victim migrant workers under threats and danger and discourages them from filing civil suits and/or complaints. Therefore, the Act should include a new article and/or sub-agent in the Chapter relating to the protection of victim migrant workers and their families/witness.

  Chapter VIII: Offence, Penalties and Trial: Article 38 has clear provision of filing the case in the court of first-class Judicial Magistrate or the Metropolitan Magistrate and description of the trial period. In practice, both the courts deal with different types of criminal cases and are overburdened. For the sake of the speedy trial for migrant workers' cases there should be provision for establishing 'Special Tribunal'. The Government of Bangladesh has already established a 'Special Tribunal' for the trial of Human Trafficking cases. The Government should allow migrant workers to file cases in the 'Special Tribunal' already established for the cases of Human Trafficking, either by a special 'Order' or inclusion of a new article/sub-article under Article 38.

The Bangladesh Government should:

- **Introduce a comprehensive arbitration rule**

  The Government should adopt a separate and comprehensive set of Rules for arbitration as stipulated in Art. 41(4) of the OEMA 2013. The Rules should set out clear steps to conduct the arbitration process for filing complaints, enlistment of complaints, officially recorded notice for arbitration hearings, numbers of maximum hearings, steps of arbitration hearings, numbers of maximum hearings and specific time period to resolve a complaint etc. The Rules should have provisions to treat derogation for the absence of any party in the hearings. There should be specific provisions of censure if any arbitration failed to dispose the complaint within the timeline.

  The Rules should detail roles and responsibilities of the arbitrator. The Rules should set a Code of Conduct for the recruiting agents and the migrant workers to ensure an enabling environment for all parties.

  The Rules should be aligned with the human rights principles and ensure human dignity, privacy and confidentiality of each party especially the victim migrant workers. The arbitration should have a system to update progress to any party by introducing an online tracking system from the point of filing complaints to the final verdict which will help to ensure a well-organised, documented and transparent arbitration process for all parties.

- **Establish an arbitral tribunal**
  The Government should establish a 'Separate Arbitral Tribunal' under the direct supervision of the Ministry of Expatriate and Overseas Employment as a separate wing, having separate office and necessary human resources including a pool of qualified 'arbitrator'(s).

- **Decentralise arbitration at district level**
  The arbitral tribunal needs to be decentralised at district level to ensure easy access for migrant workers who come from remote villages. The migrant workers face financial difficulties, security concerns for frequent back and forth travelling.

- **Build capacity of arbitrators and judges**
  The Government should develop a comprehensive short-term and mid-term plan for improvement of knowledge, skills and capacity of the arbitrator, judges, and concerned officials to deal with arbitration effectively. Other than the arbitration rules, SOP, code of conduct etc. the training should include issues on labour rights, human rights, migrants' rights and gender sensitivity. The Judicial Administration Training Institute should include training on the Migrants Act.

- **Extend legal aid services for migrant workers both at the court and the arbitration**
  To fulfil the obligation of the OEMA 2013, the Government should take immediate actions to ensure legal aid services to the migrant workers by integrating migrant workers in the service list of the Government legal aid services.

  The legal aid should be provided both for the court cases and the arbitration through assistance in documenting complaints, legal counseling and legal representation. The Government should invite and engage civil society organisations and pro-bono lawyers to extend assistance in this regard.

- **Ensure proportionate compensation**
  The Government should ensure proportionate compensation for migrant workers which considers not only financial loss, but also social costs that migrant workers experience from physical, psychological and other forms of abuse and exploitation. However, Chapter VIII: Offence, Penalties and Trail of the Migrant Act defined the offence and penalties for the offenders but is silent about the compensation for the victim migrant workers.

- **Design a monitoring system and formal structure**
  The Migrant Act makes liable the recruiting agents for violation of the job contract but does not mention any compensation for the victim migrant workers. The Migrant Act does not mention compensation if a migrant worker faces physical torture, sexual abuse, psychological stresses, or other forms of loss and damages. There is no written guideline about the arbitral award as well. As there is no measuring parameter to count the damage of the returnees, rather it depends on the arbitrator's inquisitorial mind – advantage can be taken in terms of serving justice. It is reported that the option of the usage of arbitrator's inquisitorial mind is often misused, meaning the migrant workers are deprived of appropriate compensation.

- **Undertake mass campaign on migrants' access to justice**
  This research finds a lack of awareness among most migrant workers, their families and communities about the Act, and their legal rights if they experience fraud, deception or violations of their rights including entitlements of the employment contract. The general public has little confidence and trust in the judicial system and seeking justice is a social taboo. The Government should take necessary initiatives to raise awareness of the Act and its implications, motivate migrant workers, their families and communities to seek justice through proper channels when needed.

- **Strengthen Labour Welfare Wings for providing legal aid to the workers**
  The OEMA 2013 authorised the Labour Welfare Wings in Bangladesh Missions abroad for providing legal counseling, legal aid and necessary services to deal with problems faced by migrant workers. While working with these 262 cases in 2019 OKUP realised that The Labour Welfare Wings can rarely provide legal aid services to the victim migrant workers due to various limitations. The Government should ensure special measures, for example establishing a 'legal aid cell' with allocation of necessary budget and human resources in the Labour Welfare Wing, to provide legal aid to the Bangladeshi migrant workers abroad.

About OKUP



OKUP staff run pre-departure training for potential migrants where they learn about safe pathways to migration, practical aspects of migration and their rights as migrant workers. Photo: © OKUP

Ovibashi Karmi Unnayan Program (OKUP) is a grassroots migrants' organisation in Bangladesh. As a migrants' organisation, our primary focus is to reduce migrant workers' risks and vulnerabilities to forced labour, human trafficking, and slavery of economic and climate induced migration. We are committed to upholding their rights, protection, and dignity in the migration cycle.

Our principles:
OKUP is established on and operates with the core values of human rights, gender justice, equality, and non-discrimination.

Our vision:
To create an enabling environment for the rights and protection of all migrant workers across borders, irrespective of gender and legal status.

Our mission:
To bring migrants' perspectives and voices in the migration discourse to ensure the rights, justice, and dignity of all migrant workers, their families, and communities.

Our strategic objectives:

- Empowering migrant workers, their families, and communities to build resilience against unsafe migration, trafficking and modern slavery;
- Protecting the rights and dignity of migrant workers (both economic and climate induced), their families, and communities throughout the migration cycle;
- Promoting sustainable reintegration and livelihoods for returnee migrant workers and their families;
- Conducting research and evidence-based advocacy at local, national, and international levels.



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